

		Irrespective of whether the deposition goes forward on 7/16/26, the Court finds that sanctions are in order. Code Civ. Proc., § 2025.450(g)(1) provides that “the court shall impose a monetary sanction... in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Here, Defendant has shown that it has been attempting to take Plaintiff’s deposition for over a year, noticing it on at least four separate occasions. (Pisciotta Decl., ¶¶ 3-10.) Each time Defendant noticed Plaintiff’s deposition, it requested Plaintiff’s alternative availability. It was not until after the third time the deposition was noticed that Plaintiff’s counsel provided his availability. (<i>Id.</i>) However, after the parties both agreed on a date – 2/27/26 – Plaintiff cancelled it. After Defendant filed this motion, Plaintiff then agreed to hold the deposition on 7/16/26. (Smith Decl., ¶¶ 5-9.) Accordingly, Defendant’s request for sanctions in the amount of \$560.00 against Plaintiff and/or his counsel is granted, and is to be paid within 30 days of this ruling. Defendant shall give notice.
57	<i>Neach vs. Pacheco</i>	The motion by Defendant/Cross-Complainant Rodric Anthony Pacheco (“Pacheco”) and Defendant Pacheco & Neach, PC (“Law Firm”)

(collectively, “Defendants”) for an order granting motion for summary judgment against the Second Amended Complaint (“SAC”) as to the three causes of action alleged by Plaintiff Molly J. Magnuson is DENIED. Defendants’ alternative motion for summary adjudication is DENIED.

As an initial matter, the Court notes Defendants did not identify the issues for summary adjudication in Defendants’ notice of motion or Separate Statement. (Notice of Motion; Separate Statement.) “If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts.” (Cal. Rules of Ct., Rule 3.1350(b).)

Defendants’ notice states Defendants are alternatively seeking summary adjudication but does not clearly identify the issues. Defendants’ Separate Statement of Undisputed Material Facts in support of a motion must separately identify each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion. (Cal. Rules of Ct., Rule 3.1350(d)(1)(B).) Defendants’ separate statement does not identify any issues for summary adjudication. (See, Separate Statement.) Instead, the separate statement describes the facts as “Facts Relevant To All Claims And All Issues.” (*Id.*, 2:12.) The Court has discretion to deny a motion for summary judgment when the moving

party fails to comply with the separate statement requirement. (*Truong v. Glasser* (2009) 181 Cal.App.4th 102, 118.)

“The separate statement is not merely a technical requirement, it is an indispensable part of the summary judgment or adjudication process. ‘Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for ... summary judgment to determine quickly and efficiently whether material facts are disputed.’ (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 335 [282 Cal.Rptr. 368].)” (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 415-416, citing *Whitehead v. Habig* (2008) 163 Cal.App.4th 896, 902.)

The statute governing the format of summary judgment moving papers is permissive, not mandatory. (*Brown v. El Dorado Union High School Dist.* (2022) 76 Cal.App.5th 1003, 1019.) Facts stated elsewhere, other than in the separate statement, need not be considered by the court. (*Id.*, citing *Fleet v. CBS, Inc.* (1996) 50 Cal.App.4th 1911, 1916, fn. 3.)

Magnuson did not oppose Defendants’ motion for summary adjudication on this ground. The Court exercises its discretion to consider the merits of Defendants’ motion for summary adjudication despite this procedural deficiency. Because Defendants motion for summary judgment contends all three causes of action fail as a matter of law, the Court will consider these three grounds as the issues for summary adjudication.